

PETITIONER’S MOTION FOR LEAVE TO FILE AMENDED OPPOSITION TO AMEND
PETITION FOR SURCHARGE

APPEARANCE REQUIRED

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court *or* emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

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Conservatorship of James Stephen Spellmon

25PR000067

[1] ACCOUNTING

[2] REVIEW – 1ST YEAR

TENTATIVE RULING: Both matters are CONTINUED to October 08, 2026, at 8:30 a.m. in Dept. B to allow for preparation of an accounting and to allow conservator time to file: (1) Notice of Conservatee’s Rights (Judicial Council form GC-341) mailed to relatives of the proposed Conservatee within the second degree; and (2) Care Plan (Judicial Council form GC-355/356).

The Conservators failed to file an Inventory and Appraisal (GC-040) and accounting as required for conservatorships of the estate pursuant to Probate Code section 2620, subdivision (a). If no accounting is timely filed in advance of the continued hearing, Conservators will be directed to appear to explain the ongoing failure. The Clerk is directed to send notice to the parties.

Conservators are encouraged to contact the Court’s Self-Help Center, located on the lower level of the Historic Courthouse at 825 Brown Street, for assistance.

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- [1] MOTION TO COMPEL FURTHER RESPONSES TO **REQUESTS FOR ADMISSION** (SET ONE) FROM RESPONDENT **MATTHEW L. GENNET**
- [2] MOTION TO COMPEL FURTHER RESPONSES TO **INTERROGATORIES** (SET ONE) FROM RESPONDENT **MATTHEW L. GENNET**
- [3] MOTION TO COMPEL FURTHER RESPONSES TO **REQUESTS FOR PRODUCTION** OF DOCUMENTS (SET ONE) FROM RESPONDENT **MATTHEW L. GENNET**
- [4] MOTION TO COMPEL FURTHER RESPONSES TO **REQUESTS FOR ADMISSION** (SET ONE) FROM RESPONDENT **JON CONHAIM, TRUSTEE**
- [5] MOTION TO COMPEL FURTHER RESPONSES TO **INTERROGATORIES** (SET ONE) FROM RESPONDENT **JON CONHAIM, TRUSTEE**
- [6] MOTION TO COMPEL FURTHER RESPONSES TO **REQUESTS FOR PRODUCTION** OF DOCUMENTS (SET ONE) FROM RESPONDENT **JON CONHAIM, TRUSTEE**

TENTATIVE RULING: All six motions are CONTINUED to October 6, 2026, at 8:30 a.m. in Dept. B *for setting* following the hearing on the motion to bifurcate. The Case Management Conference set for September 17, 2026, at 8:30 a.m. is also CONTINUED to October 6, 2026, at 8:30 a.m. in Dept. B.

Petitioner Natasha Gennet (“Ms. Gennet”) moves for orders (1) compelling Respondents Matthew L. Gennet and Jon Conhaim, as Trustee of the 2012 Irrevocable Matthew L. Gennet Trust (“2012 Trust”) (collectively, “Respondents”) to serve further verified responses to Ms. Gennet’s First Set of Requests for Admissions, Interrogatories, and Requests for Production of Documents, and (2) imposing monetary sanctions in the total amount of \$7,500 [\$1,250.00 per motion] against Respondents and their counsel of record.

In each of the motions, Ms. Gennet takes issue with, *inter alia*, an objection asserted by Respondents regarding the scope of the subject discovery, which Ms. Gennet characterizes as pervading every response. Namely, Respondents’ responses contend that discovery relating to facts after Ms. Gennet “was no longer an interested beneficiary” after October 16, 2022 are outside the scope of permissible discovery.

With respect to that challenged objection, Ms. Gennet argues that whether Petitioner’s beneficial interest terminated on October 16, 2022 is the central contested issue in this proceeding, not an established fact, and a responding party may not narrow its discovery obligations to the very proposition it hopes to prove at trial.